



BILL DE BLASIO
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



FREDERICK DAVIE
CHAIR

October 01, 2021

Krystin Hernandez



CCRB Case Number: 202004142

CCRB Squad Manager: [REDACTED]

Dear Krystin Hernandez:

Following a thorough and impartial investigation by the Civilian Complaint Review Board's investigative staff, the Board reviewed the evidence regarding the above-referenced complaint. I am now writing to inform you of the Board's findings on the allegation(s) raised by this complaint.

Allegation Dispositions:

- | | |
|---|-------------------------|
| A) Abuse of Authority:
Sergeant Kenneth Rice detained Natalie Baker. | Substantiated (Charges) |
| B) Abuse of Authority:
Sergeant Kenneth Rice detained Ethan Chiel. | Substantiated (Charges) |
| C) Abuse of Authority:
Sergeant Kenneth Rice detained Jonathan Davis. | Substantiated (Charges) |
| D) Abuse of Authority:
Sergeant Kenneth Rice detained Rafael Gilbert. | Substantiated (Charges) |
| E) Abuse of Authority:
Sergeant Kenneth Rice detained Krystin Hernandez. | Substantiated (Charges) |
| F) Abuse of Authority:
Sergeant Kenneth Rice detained David Holton. | Substantiated (Charges) |
| G) Abuse of Authority:
Sergeant Kenneth Rice detained August Leinbach. | Substantiated (Charges) |
| H) Abuse of Authority:
Sergeant Kenneth Rice detained Ryan Macdonald. | Substantiated (Charges) |
| I) Abuse of Authority: | Substantiated (Charges) |

Sergeant Kenneth Rice detained Jalen Matney.

- | | | |
|----|---|-------------------------|
| J) | Abuse of Authority:
Sergeant Kenneth Rice detained Sarah Mills. | Substantiated (Charges) |
| K) | Abuse of Authority:
Sergeant Kenneth Rice detained Rex Santus. | Substantiated (Charges) |
| L) | Abuse of Authority:
Sergeant Kenneth Rice detained Roxanne Zech. | Substantiated (Charges) |

Officer Penalty Recommendations:

The Board's penalty recommendation takes into account all of the allegations substantiated against the officer, as well as the officer's disciplinary history.

SGT Kenneth Rice	Substantiated (Charges)
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For an explanation of Board findings, please refer to the enclosed form, which details what each finding means.

In this case, the Board recommended Charges for one or more of the subject officers in the complaint. Consequently, this complaint will be forwarded to the CCRB's Administrative Prosecution Unit (APU) which prosecutes the most serious cases of police misconduct. Please be aware that if the case goes to trial in the Police Department's Trial Room, you may be asked by to testify at a proceeding. Also note that only the Police Commissioner has the authority to actually impose discipline against a police officer. The Police Commissioner may accept, reject, or modify any plea or trial verdict or penalty recommendation reached by the APU in the Trial Room.

The integrity and quality of the Police Department's service to the public depends, in large part, upon receiving information regarding the performance of police officers as they carry out their duties. The Civilian Complaint Review Board appreciates your willingness to participate in this extremely important process.

If you have any questions about the current status of your case, please contact the CCRB at (212) 912-7235.

Sincerely,



Jonathan Darche
Executive Director

Enclosure



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EXPLANATION OF BOARD FINDINGS

Substantiated – the officer(s) committed misconduct.*

Unfounded – the officer(s) did not commit the alleged action.

Unsubstantiated – it is unclear whether misconduct occurred.

Exonerated – the actions of the officer(s) were not found to be misconduct.

Miscellaneous – the officer has resigned, retired or has been terminated.

Officer(s) Unidentified - the subject officer(s) of the alleged action could not be identified.

Complainant/Victim Uncooperative – the complainant/victim did not respond to repeated attempts by the investigator to schedule an interview or failed to appear for scheduled interviews.

Complainant/Victim Unavailable – the investigator was unable to locate the complainant/victim with the contact information obtained.

Victim Unidentified – there is not enough information to locate the alleged victim.

Complaint Withdrawn – the complainant/victim no longer wishes to go forward and asked to withdraw the complaint. No case is closed for this reason until the person states that they are voluntarily withdrawing the complaint.

Closed Pending Litigation– the complainant/victim and/or the attorney representing the complainant/victim, does not want to proceed with the CCRB's investigation because of (potential) pending litigation.

If you have new evidence, not previously available to the CCRB, or a previously unavailable or uncooperative witness becomes available, the Board may be willing to reopen your case if such new evidence may reasonably lead to a different finding. To request that the Board reopen your case in such circumstances, please detail the new evidence and request in a letter addressed to: Executive Director, at the above address, as soon as possible.

*The Board may, when it substantiates an allegation, make one of the following recommendations:
Formalized Training: The officer should receive training at the Police Academy in regard to the specific allegation(s).

Command Discipline A or B: The officer should receive discipline at the local, command level, which may range from instructions to the loss of up to ten days' pay.

Charges and Specifications: Charges should be filed against the officer, which may result in an Administrative hearing and a penalty more severe than a command discipline.